

**THE CONSTITUTION
OF THE
GHANA NATIONAL UNION OF TECHNICAL STUDENTS**

IN THE NAME OF THE ALMIGHTY GOD, WE, the members of the Ghana National Union of Technical Students (GNUTS) in all Technical Universities, Polytechnics, Technical and Vocational Institutions of learning in Ghana REALIZING the need to organize ourselves in the spirit of oneness to pursue common goals, equality and fraternity on all campuses to secure for all Students the needed environment for academic, moral, spiritual, political and nation development as a whole; DETERMINED to promote the general welfare and ensure continuity in Technical and Vocational work including academic, social and other pursuits; AND IN SOLEMN declaration and affirmation of our commitment to freedom, justice, probity, rule of law and accountability; DO HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION AS A FRAMEWORK FOR THE GOVERNANCE OF THE UNION.

CHAPTER ONE THE CONSTITUTION

1. SUPREMACY OF THE CONSTITUTION

- (1) The sovereignty of GNUTS resides in the members of the Union in whose name and for whose welfare the duties and responsibilities are to be excised in the manner and within the limits laid down in this Constitution.
- (2) This Constitution shall be the supreme law of GNUTS and any other law found to be inconsistent with any provision in this Constitution shall, to the extent of the inconsistency, be null and void.
- (3) Notwithstanding clause (2) of this article, this Constitution shall be Subject to the Constitution of the Republic of Ghana and all other laws of the Republic and in aggregation with the rules and regulations of respective individual institutions, **the Constitution shall be the supreme law governing the affairs of SRC's of any member institution**
- (4) In conflict resolution, the GNUTS constitution shall remain supreme.
- (5) **Any law(s) of Member SRC's Institutions which is (are) inconsistent with any provision(s) of this Constitution shall, to the extent of the inconsistency be null and void.**

2. ENFORCEMENT OF THE CONSTITUTION

- (1) A member who alleges that-
 - (a) an enactment or anything contained in or done, under the authority of that or any other enactment; or
 - (b) Any act or omission of any person; is inconsistency with, or is in contravention of a provision of this Constitution, may bring an action to the Judicial Council for a declaration to that effect.
- (2) The Judicial Council shall, for the purposes of a declaration under clause (1) of this article, make such orders and give such directives as it may consider appropriate for giving effect, or enabling effect to be given, to the declaration so made.

- (3) Any person or group of persons to whom an order or directive is given under clause (2) of this article by the Judicial Council, shall comply and carry out the terms of these order or directive
- (4) Failure to obey or carry out the terms of an order or directive made or given under clause (2) of this article constitutes a violation of this Constitution and contempt of the Judicial Council and shall in the case of Executive Officers, constitute a ground for removal from office under this constitution.
- (5) A person convicted of violation under clause (4) of this article shall not be eligible for election, or for appointment, to any office of the Union.
- (6) Any person or group of persons to whom an order or direction is addressed under clause (2) of this article by the Judicial Council shall duly obey and carry out the terms of the order or direction to the extent that such order is not in contradiction /inconsistent with this constitution or the laws of Ghana.
- (7) In the event of refusal to comply with the order given under clause (2) of this article shall be an offence under this constitution and shall constitute a ground for suspension of such person or group of persons from the Union for a period as may be determined by the Judicial Council subject to the approval of Central Committee or financial sanction imposed.
- (8) Notwithstanding, financial sanctions may be preferred against such a person or group of persons depending on the gravity of the offense which is subject to the approval of (CENTRAL COMMITTEE).

3. DEFENSE OF THE CONSTITUTION

- 1) All members of the Union shall have the right and duty at all times to defend this constitution and resist any action of a person or group of persons to undermine this constitution.
- 2) Any person or group of persons who resist the undermining of this constitution commit no offense and as such any damage incurred by such persons shall be paid for by the Union.
- 3) Notwithstanding clause (2) of this article, a person or group of persons defending the constitution shall employ reasonable cause of action.

4. NAME AND IDENTITY

- (1) The organization shall be known and called the **Ghana National Union of Technical Students** (hereinafter referred to as “**GNUTS** or **The Union**”).
 - (a) The Head Office of the Union shall be located in the Country's Capital.
 - (b) The slogan of the Union shall be “GNUTS; Professionals with Integrity”
- (2) GNUTS shall be the official mouthpiece and the sole representative of all members both within and outside the Country
- (3) The Union is registered under the Company's Code 1963 (Act 179) as a default Union and shall be known and called Ghana National Union of Technical Students, herein after referred to as GNUTS.

5. AUTONOMY

- 1) GNUTS remains autonomous and shall not be Subject to any student Union in Ghana.
- 2) Any decision to revoke clause (1) of this article shall be determined by Congress with two thirds (2/3) majority of total votes cast.

6. MEMBERSHIP

- (1) All Technical Universities/Polytechnics in the country are automatic members of GNUTS.
- (2) Any person who is a member of GNUTS shall enjoy full membership of GNUTS for (2) years after leaving his / her institution of training,
- (3) Any Technical or Vocational Institution in Ghana may apply for affiliation or membership to GNUTS. The National Secretariat, subject to the approval of Congress, may grant such affiliation or membership. A certificate of membership is to be issued to the member Institution.
- (4) Every student in a Technical or Vocational Institution in Ghana that is recognized by the National Accreditation Board (NAB) and is approved by Congress shall be a member of GNUTS.
- (5) Congress shall have the right to discontinue the affiliation of any institution to GNUTS.

- (6) Institutions applying for clause (2) supra must be recognized by National Accreditation Board and or other recognize bodies mandated to grant accreditation in Ghana.

7. ORIENTATION

GNUTS is a democratic, non-partisan, independent and progressive Mass Movement of Technical Universities/Polytechnics and Technical and Vocational students in Ghana and Ghanaian Students abroad.

- (1) GNUTS ' political outlook shall embrace all progressive and democratic ideals and principles, including those against imperialism, colonialism, poverty, hunger, corruption, racism, tribalism, illiteracy and ignorance, for national development.
- (2) The action(s) of GNUTS shall be guided by the supreme interest of the people of Ghana, students in particular, for national dependence, democracy and social progress.
- (3) GNUTS shall respect the freedom of conscience of its membership
- (4) Political parties shall not be formed within the ranks of GNUTS.
- (5) The activities of GNUTS shall be conducted in accordance with this constitution and the laws of the Republic of Ghana.

8. SLOGAN: GNUTS

9. MOTTO: *The Professionals with Integrity*

10. PROTECTION OF MEMBERS

1. GNUTS shall offer solidarity, protection and assistance to members in the preservation and enjoyment of their fundamental human rights and in the fulfillment of the aims and objectives of GNUTS as contained in this Constitution.
2. In the attainment of clause (1) supra, when the rights of a member(s) is or are being infringed upon, whether within the Union and without, the Local GNUTS Secretariat of member institutions, bloc executive officers, National Secretariat

members, Central Committee and/or Congress shall concern itself with these duties /responsibilities thereof.

3. For the benefit of doubt, the National Secretariat shall have the prerogative and/or duty to timely intervene in the protection of member(s) or in local/institutional crises with the consent or direction of National Executive Committee (NEC) at all times.

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CHAPTER TWO

11. AIMS AND OBJECTIVES

- (1) The Aims and Objectives of the Union shall be;
 - (a) To offer a common forum for the discussion of Challenges affecting Technical and Vocational Students and generally to develop a spirit of solidarity among students.
 - (b) To foster unity and solidarity among Technical and Vocational Students and stakeholders in its quest to achieve higher goals.
 - (c) To seek, defend and protect the rights of Technical and Vocational Students and influence decision and policy making to the benefit of students.
 - (d) To seek the rule of law in the country with particular reference to issue militating against the economy, social, cultural and the general public in order to secure peace, democracy, and socio-economic development.
- (2) The aims and objectives of the Union shall not be limited to clause (1) of this article.

12. IMPLEMENTATION OF UNION'S POLICY

- (1) Central Committee shall within 3 months upon the coming into force of this constitution approve a Strategic Policy Document submitted by the National Executive Committee.
- (2) The Policy Document shall only be amended by Congress, should the need arise.
- (3) The National Secretariat shall be responsible for the implementation of the Strategic Policy Document.
- (4) The President shall report at each meeting all the steps taken to ensure the realization of these Directive Principles of GNUTS policy objectives contained in this Constitution.
- (5) Failure to carry out the mandate of the Policy Document constitutes a breach of this constitution and shall constitute a ground for the removal from office under this constitution

Chapter Three

13. STRUCTURE OF GNUTS

(1). The Structure of GNUTS shall compose of the following:

- a. Congress
- b. Central Committee
- c. National Executive Committee
- d. Judicial Council
- e. Local SRC's, of Member Institutions
- f. Advisory Board
- g. Alumni

14. CONGRESS

(1) There shall be an Annual Residential Congress which shall be attended by all member Institutions and affiliated Bodies.

15. PROCEDURE OF CONGRESS

- 1) Each member institution shall communicate the details of Delegates and Observers to National Secretariat not later than TWENTY-ONE (21) days to the Congress.
- 2) There shall be a last Central Committee sitting as part of the activities of Congress after which the Central Committee shall be dissolved.
- 3) A steering Committee shall be formed after the meeting supra to oversee the remaining activities of Congress after the dissolution of Central Committee.
- 4) The Steering Committee shall be made of Local GNUTS Representatives of composite institutions.
- 5) The National President shall present to Congress a written report of the year's activities of GNUTS
- 6) Each member Institution shall register Delegates and Observers on the day of arrival at Congress.

- 7) The Steering Committee shall coordinate activities of Congress after dissolution of Central Committee.
- 8) The Electoral Commission shall organize all elections of Congress
- 9) There shall be a Central Committee sitting to ratify new members of Central Committee and to approve the Chief Justice after final declaration of election results at congress.
- 10) Congress shall hold a conference on the state of Technical and Vocational Education in Ghana and any issue a communiqué
- 11) The Public Relation Officer of the Union shall see to the implementation of the outcome of the conference.

16. CODE OF DRESSING AT CENTRAL COMMITTEE MEETINGS AND CONGRESS

- (1) Dressing code for all attendees shall be the Union's Cloth, Formal and or Traditional regalia

17. POWERS AND FUNCTIONS OF CONGRESS

- (1) Congress shall be the Supreme Legislative Organ of GNUTS and shall have the following powers;

- a) Review or Amend and enact the Constitution, standing orders, and bye laws and establish policies and programs for the Union.
- b) Elect members of the National Secretariat and other Officers of the Union.
- c) Review the work of the National Executive Committee.
- d) Ratify members and membership of the Union.
- e) Take decisions on annual financial levies.
- f) Decisions taken and resolutions passed by Congress shall be regarded as policies of the Union.
- g) Congress shall have the right to create various committees and advisory bodies with the aim of coordinating on concrete issues, facilitating decision-making, increasing the flow of information and providing the member institutions with channels for direct involvement in GNUTS work.
- h) Congress shall concern itself with questions of policy and other matters as may be referred to it by National Executive Committee or Central Committee

- (2) Decisions of Congress, unless otherwise stated shall be taken by simple majority of those delegates present and voting shall be binding on the Union.

18. REPRESENTATION TO CONGRESS

- (1) Each member institution shall present fifteen delegates who shall consist of the following:
 - (a) Five accredited Members of Central Committee (outgoing)
 - (b) Five accredited Members of Central Committee (incoming)
 - (c) Five observers of which TWO shall be pursuing non-tertiary programs.
 - (d) The National Presidents of the various Academic Associations in member Institutions shall be observers at Congress
 - (e) Representatives from the Alumni Association shall be accredited as observers.
 - (f) Ex- officio's shall be invited to congress.
 - (g) Any person or group of persons that National Executive Committee deems fit may be invited to congress as Observer.
 - (h) Five accredited delegates per region shall be invited from among Technical/Vocational Institutional membership of the Union to Congress as observers.

19. QUORUM OF CONGRESS

- (1) Not less than two-thirds of accredited Member Institutions shall duly constitute Congress
- (2) Any sixty percent delegates present shall form a quorum at any sitting of congress
- (3) Notwithstanding clause (2) supra, a sitting of congress shall be valid should the number of delegates present fall below the quorum.
- (4) Delegates from Member Institutions to congress shall include observers

20. FUNDING OF CONGRESS

- (1) Funding for congress shall be borne by Member Institutions.
- (2) Each Member Institution shall settle it covering fees (capitation) for it delegates to

congress at least TWO months before congress, after receiving capitation letters.

- (3) Congress Capitation shall be determine at the last but one Central Committee meeting of the Union

21. MINI/EMERGENCY CONGRESS

- (1) Mini/Emergency Congress shall only be convened when more than 50% of Member Institutions second a motion at a Central Committee sitting.

- (a) It shall be convened under the following;
 - (i) Uncompleted business at Congress
 - (ii) Circumstances where National Officer(s) may resign as a block.
 - (ii) Emergency issues that requires Congress decision.

- (2) Seventy percent (70%) of the cost of financing Mini- Congress shall be borne by Member Institutions.

22. CENTRAL COMMITTEE

- (1) Subject to the provisions of this Constitution, there shall be a Central Committee of the Union referred to in this constitution as CC which shall be the second highest decision making body of the Union.
- (2) The act or acts of Central Committee shall not contradict that of Congress without recourse to the Judicial Council. All discussions and voting at Central Committee sitting shall be limited to delegates and accredited Observers only.

23. COMPOSITION OF CENTRAL COMMITTEE

- (1) The Central Committee shall comprise of the following:
- a) Officers of the National Secretariat
 - b) SRC Presidents, SRC Secretaries, SRC Treasurers, GNUTS Representatives, Women's Commissioners, and two observers from each Member Institution.
 - c) National Presidents of the various academic associations within the Tertiary Member Institutions as observers.
 - d) Past National Secretariat members, Alumni and Associates shall be invited by the National Secretariat to attend Central Committee sittings as observers.

- e) Any other person(s) deemed appropriate shall be invited to attend Central Committee sitting as observer(s).
- f) All observers have the right to speak on the floor of the House but shall have no voting rights.
- g) Delegation to Central Committee sittings shall be accredited office holders only and shall not be by proxy.

24. QUORUM OF CENTRAL COMMITTEE SITTING

- (1) Sixty percent (60%) of accredited members from at least six Member Institutions shall form a quorum for a Central Committee sitting to commence.

25. FUNCTIONS FOR THE CENTRAL COMMITTEE

- (1) The Central Committee Shall:
 - (a) See to it that policies that were fashioned out at congress are implemented.
 - (b) Decisions at Central Committee sittings shall be by simple majority
 - (c) In event of a tie, the Speaker shall have a casting vote.
 - (d) Decide on the next place of Central Committee sitting but as far as possible, should be on rotational basis.
 - (e) The sittings shall be held bi- monthly.

26. EMERGENCY CENTRAL COMMITTEE SITTINGS

- (1) An emergency Central Committee sitting shall be called by:
 - (a) NATIONAL EXECUTIVE COMMITTEE
 - (b) Member Institution(s) provided 5 institutions of Central Committee shall subscribe their names and signatories to a request stating explicitly the business to be considered at the sitting.

27. NATIONAL EXECUTIVE COMMITTEE

- (1) The National Executive Committee shall comprise of the following.
 - (a) The National President

- (b) The National Secretary
- (c) The Coordinating Secretary
- (d) Research and Education Officer
- (e) The National Treasurer
- (f) The Public Relations Officer
- (f) The National Women's Commissioner

28. POWERS OF THE NATIONAL EXECUTIVE COMMITTEE

- (1) The National Executive Committee shall:
 - a) Be responsible for implementing policies of the Union as directed by Congress, CENTRAL COMMITTEE or any other organ of the Union.
 - b) See to the effective operations of the National Secretariat
 - c) Be the sole body to make representation to any authority on behalf of the Union.
 - d) Hold at least a press conference within their tenure of office.
 - e) Issue a communique after each congress,
 - f) Appoint ad-hoc committees as deemed necessary for the efficient running of the Union.
 - g) For the purposes of clause (f) hereunder, membership of such committees shall not be restricted to the National Executive Committee member only.

29. MEETINGS OF THE NATIONAL EXECUTIVE COMMITTEE

- 1) The National Executive Committee shall meet at least once a month.
- 2) The National President shall chair all NEC meetings and in his absence the National Secretary shall act.
- 3) An emergency meeting shall be called on the request of one third of members of the Committee, who shall subscribe their names and signatories to a written request, stating the issue to be considered at the meeting.
- 4) Voting shall be by simple majority at all NEC meetings.
 - (a) Where limitation of time and distance prevent a particular sitting from taking place, the President may request members to vote on any proposals by

phone or email or post,

(b) The proposals shall be clearly set forth in a document signed by the President or whoever is acting for him and members shall be provided with official voting forms.

(c) A copy of this report shall be sent to issue to be considered at the sitting.

30. THE NATIONAL SECRETARIAT

1. There shall be a National Secretariat made up of executive officers elected at Congress.

31. COMPOSITION OF THE NATIONAL SECRETARIAT

1. The National Secretariat shall comprise:

- (a) The National President
- (b) The National Secretary
- (c) The Coordinating Secretary
- (d) Research and Education Officer
- (e) The National Treasurer
- (f) The Public Relations Officer
- (g) National Women's Commissioner

32. DUTIES OF THE NATIONAL SECRETARIAT

(1) The Secretariat shall perform the following functions:

- a) The offices of the National Secretariat shall be situated in the Nation's capital
- b) Be responsible for keeping true copies of all proceedings of the Union.
- c) Shall be the sole custodian of the archives and all important documents at all levels of the GNUTS.
- d) Invite past National Secretariat members, Alumni and Associates in good standing to attend Congress and Central Committee sittings as observers.
- e) The National Secretariat shall be headed by the Coordinating Secretary in the absence of the President which shall be concerned with the day to day running of the Union
- f) Shall be responsible for research and education for Member Institutions.
- g) Shall carry out duties that may be assigned to it by Congress, Central

Committee and National Executive Committee.

33. JUDICIAL COUNCIL

- 1) There shall be a JUDICIAL COUNCIL which shall comprise of a Chief Justice and all Chairpersons of Judicial Committees or Councils from Tertiary Member Institutions.
- 2) The Judicial Power of the Union shall be vested in the Judicial Council accordingly; neither the National Executive Committee, Central Committee, Congress nor any organ or agency of GNUTS shall have or be given final judicial power.
- 3) Notwithstanding clause (2) of this article, the decision of the Judicial Council shall be communicated to Central Committee or Congress where applicable.
- 4) The Judicial Council shall in emergency cases communicate its decision to the National Secretariat for an action to be taken; the Central Committee or Congress shall be informed on its next sitting where applicable.
- 5) The Chief Justice and Justices of the Judicial Council shall, before assuming the exercise of the duties of their Office, take and subscribe the Oath of Allegiance and the Judicial Oath set out in the Second Schedule of this Constitution
- 6) Members of the Judicial Council shall not be entitled to any monthly allowance from the Union.
- 7) Notwithstanding clause (6) of this article, Judicial Council members shall be paid such sitting allowance and expenses covering any case they shall sit on and adjudicate, as determined by Congress.

34. APPOINTMENTS OF THE CHIEF JUSTICE

- (1) The Chairman of the Judicial Council shall be appointed by the President in consultation with the National Secretariat and Advisory Board subject to the approval of Central Committee.

35. INDEPENDENCE OF THE JUDICIAL COUNCIL

1. In the exercise of its functions, the Judicial Council shall not be subject to the control or direction of any person or authority.

2. Neither the National Executive Committee, National Secretariat nor Parliament nor any other person or agency whatsoever shall interfere with the Justices in the exercise of their functions. All members and Committees shall accord the Judicial Council such assistance the Council may reasonably require to protect its independence, dignity and effectiveness, subject to this Constitution.
3. A member of the Judicial Council shall not be liable to any actions or suit for any act or omission by him in the exercise of his/her judicial power.

36. JURISDICTION, DUTIES AND EXERCISE OF JUDICIAL POWERS

1. The Judicial Council shall have jurisdiction on:
 - a. All matters relating to the enforcement or interpretation of this Constitution.
 - b. All matters arising as to whether a resolution was made or, a person or authority has not acted in accordance with the power conferred on him/her by this Constitution or any other legislation or resolution of NEC, CC and Congress
 - c. All matters relating to election under this Constitution.
 - d. Impeachment proceedings against any member of the executive and other appointed officers.
 - e. The Judicial Council shall NOT have jurisdiction in disciplinary matters against the Chief Justice. Such matters shall be referred to the Central Committee who shall then constitute a committee to probe him/her.
 - f. Dispute between or amongst any Executives, members and Committees
 - g. Disciplinary matters of the union and shall make recommendations for sanctions for consideration on disciplinary matters referred to it by NEC, NS, Central Committee and Congress.
2. For the purpose of hearing and determining a case or matter within its jurisdiction, the Judicial Council shall have power to do such things as shall be reasonably necessary thereto including the issuing of the prerogative writs or orders of Declaration and Injunction and issue directions for purpose of enforcing or securing the enforcement of its powers.

3. The Judicial Council shall be responsible for making the Constitution in its authentic form accessible to all member institutions
4. Shall keep records on all fix assets of the union
5. Without prejudice to any provision in this constitution, the verdict of the Judicial Council on matters of interpretation of this Constitution shall be final and conclusive.
6. Without prejudice to the advisory role of the Advisory Board, the Judicial Council shall in exercise of its functions, have the power to give advisory opinions to the NEC, Central Committee , Congress and Committees on legal issues or any other matter upon request. Any such advice shall not bar the Judicial Board from hearing a case arising out of a decision of relating to their advice.
7. A minimum of Six (6) Justices plus the Chief Justice shall be required to constitute a panel for hearing. The decision of the Council shall be by a simple majority.
8. The council shall be bound to give reasons for its decision(s). Failure to comply with this provision shall render such a decision null, void and of no effect.
9. Shall perform any other function assigned to it by CC and Congress

37. LAWS OF GHANA

1. Notwithstanding the powers conferred on the Judicial Council supra, in the exercise of its functions, the Judicial Council shall be guided by the Technical University Act and the Constitution of the Republic of Ghana.

38. STUDENTS REPRESENTATIVE COUNCILS

- (1) All SRCs shall have democratically elected President, Secretary, Treasurer, GNUTS Representative and Women Commissioner to serve on the Central Committee of the Union.

39. POWERS AND FUNCTIONS OF THE SRCs

1. All SRCs shall have their own constitutions which shall not be inconsistent with the GNUTS Constitution.
2. Shall have prerogative to regulate their local sittings.
3. Shall reserve the right to manage their various institutions in a disciplined

manner.

4. All irresolvable issues in any SRC shall be referred to the National Secretariat of GNUTS

40. ADVISORY BOARD

- 1) The National Secretariat shall nominate five (5) Alumni in good standing to the advisory Board subject to the approval of Central Committee.
- 2) The membership of the Board shall strictly be Alumni with special reference to those who are in good standing and have served the Union in any capacity.

41. FUNCTIONS OF THE ADVISORY BOARD

- (1)a. The Advisory Board shall play the role of counseling the Union on all matters bothering on Technical/Vocational Education and any other issue concerning the smooth running of the union.
- (1)b. Advice and resolve any crisis within National Executive Committee /Secretariat.
- (1)c. The Advisory Board shall present at least two reports on their operations to Central Committee.
- (2) The Board shall perform any other duties assigned to it by the Union

CHAPTER FOUR

GNUTS BLOCS

42. UNION BLOCS

1. There shall be GNUTS Blocs created on the basis of well-defined Institutional or Regional borders.
2. All Member Institutions from the said blocs shall automatically have the right to participate in all the activities of the Bloc.

43. FUNCTIONS OF A BLOC

1. A Bloc shall;
 - a. Have the right to prepare motions and implement policies connected to developments within their bloc.
 - b. Liaise with the National Secretariat and assist in the implementation of decisions taken by GNUTS

44. LIMITATION OF A BLOC

1. Unless otherwise stated, no Bloc shall have the power to negate the right of any individual/Member Institution to propose motions at any time for consideration and adoption.

45. COMPOSITION OF GNUTS BLOCS

1. The following Blocs shall exist:
 - a. Post-graduate students
 - b. The Graduate Students: - comprises of all Technical University Courses
 - c. The HND Bloc: - comprises of all HND Programs
 - d. The Pre-Tertiary Bloc: - comprises of Secondary-Technical, Commercials, Vocational, and other Pre-tertiary programs.

CHAPTER FOUR

DUTIES AND RESPONSIBILITIES OF NATIONAL SECRETARIAT/MEMBERS OF GNUTS

46. Responsibilities of National Secretariat

- (1) National Secretariat shall see to the effective and efficient operation of the Union's activities.
- (2) The National Secretariat shall be responsible for the organization of all official meetings, activities and functions for the promotion of the aims and objectives of GNUTS.
- (4) National Secretariat shall be accountable to Central Committee and Congress.
- (5) National Secretariat shall maintain proper financial and administrative records of activities of GNUTS.
- (6) National Secretariat shall submit detail and comprehensive financial report to the External Auditing firm not less than 30 days to Congress for auditing.

47. NATIONAL SECRETARIAT MEETINGS

- (1) Quorum shall be four (4) members including the National President and/or the National Secretary and the decision taken will bind on all.

48. THE NATIONAL PRESIDENT

1. There shall be a President of the Ghana National Union of Technical Students who shall be the Head of the Union and Head of the National Executive Committee.
2. The President shall exercise the executive authority vested in him by GNUTS Congress in accordance with the provisions of this constitution.
3. Before assuming office as the President shall take and subscribe before Congress the oath of allegiance and the Presidential oath set out in the second schedule of this Constitution.
4. Be the Chief spokesman of the Union in all matters, unless otherwise decided by him/her.
5. Shall in consultation with National Executive Committee take disciplinary action against any officer who refuses to perform his /her duties as stipulated

in this Constitution.

6. Preside over all sittings of the National Executive Committee, National Secretariat Central Committee and Congress.
7. Be the principal signatory to all GNUTS accounts.
8. Appoint Chairperson of Electoral Commission in consultation with members of the National Executive Committee and Advisory board subject to the approval of the Central Committee.
9. Appoint the Chief Justice in consultation with members of the National Executive Committee and Advisory board subject to the approval of the Central Committee.
10. In consultation with the Coordinating Secretary and the Secretary call for National Secretariat sittings, Executive Committee meetings and Central Committee meetings.
11. He/she shall have a casting vote in the event of a tie at Congress, CC, NEC and NS meetings.
12. He/she shall vet and approve all expenditure of NEC and various committees.
13. The President in the performance of his/her functions shall ensure the achievement of the aim and objectives of GNUTS as stated in the Constitution.
14. The President in consultation with the other members of the NEC shall ensure that GNUTS is represented on the requisite boards or committees or commissions in the country.
15. The President shall present a state-of-GNUTS address to all Central Committee Sittings and at Congress
16. The President may be assigned additional responsibility (ies) by Congress and or Central Committee

49. THE NATIONAL SECRETARY

1. The National Secretary shall take, keep and maintain true and accurate minutes at Congress, Central Committee, the NEC and all other official meetings, activities or functions of GNUTS and make it available to Member Institutions at least two (2) weeks before the next meeting(s).

2. He/she shall take custody of all documents and records of GNUTS and shall be copied all correspondents received by other members of NEC and shall properly index them for transfer to the incoming NEC.
3. He/she shall perform any additional duties as may be assigned to him/her by Congress, Central Committee, the NEC, and/or the National President, provided it is consistent with the provisions of this Constitution.

50. THE COORDINATING SECRETARY

- (1) Coordinate the day to day implementation of the decisions of Central Committee, NEC, and other committees of GNUTS as directed by the President or NEC.
- (2) Control, direct and manage in a disciplined manner, the day-to-day activities of the National Secretariat.
- (3) Present the Union's Secretariat report at every Central Committee sitting except otherwise decided by the House.
- (4) Be a signatory to the Union's Bank account
- (5) Hold office for a year
- (6) Call and preside over all Permanent Secretariat sittings.
- (7) Perform any other duty assigned to him by National Executive Committee, Central Committee or Congress.
- (8) Be accountable to the National President; coordinate the activities of all secretarial officers with the exception of the President, Secretary and the Treasurer.
- (9) Shall not arrogate to him or she powers to do things suo moto without the express consent of others
- (10) He/she shall be responsible for all the correspondence for and on behalf of GNUTS

51. THE RESEARCH AND EDUCATION OFFICER

1. The Research and Education Officer shall assist the Coordinating Secretary to carry out duties assigned to the Secretariat.
2. Act in the absence of the Coordinating Secretary.

3. Be responsible for research and educational programs of the Union.
4. Serve as the Secretary to the Permanent Secretariat.
5. Assess the performance of Technical University/Polytechnic graduates on the job market and report to NEC.
6. Be responsible for Students' Welfare.
7. Have mandatory National Service with the Union.
8. Hold office for a year and may seek re-election.
9. Perform any other duty assigned to him by NEC, CC or Congress.

52. NATIONAL TREASURER

- (1) The Treasurer shall be an accountancy student.
- (2) Be the Secretary to the Finance Committee.
- (3) Receive funds on behalf of the Union and see to its proper disbursement.
- (4) Keep true records of all financial transactions of the Union and present to Congress statement of GNUTS accounts covering National Secretariat tenure of Office.
- (5) Present quarterly financial report to the National Secretariat and Central Committee.
- (6) Keep all negotiable instruments of the Union.
- (7) Keep records of all assets of the Union.
- (8) Be a signatory to all the Union's Bank account.
- (9) Present financial report of the Union at the end of National Secretariat tenure of Office.
- (10) Have mandatory National Service with the Union.
- (11) Hold Office for a year and may seek re-election.
- (12) Perform any other duty assigned to him/her by National Executive Committee, Central Committee or Congress.

53. PUBLIC RELATIONS OFFICER

- (1) The PRO shall be in charge of all media matters on behalf of the Union.

- (2) Organize press releases, conferences and other related matters.
- (3) Establish good and cordial relationship with press houses and the public.
- (4) Coordinate all press matters to the SRCs.
- (5) Act as the officer in charge of foreign affairs on behalf of the Union.
- (6) Have mandatory National Service with the Union.
- (7) Hold office for a year and may seek re-election.
- (8) Perform any other duty assigned to him by NEC, GP or Congress.

54. NATIONAL WOMEN'S COMMISSIONER

1. There shall be a Women Commissioner who shall be responsible for all gender issues and matters relating to the integration and participation of all students within GNUTS and other relevant collaborating bodies.
2. The Women Commissioner shall design and implement programs aimed at developing the capacities, skills and knowledge of female graduate students.
3. The Women Commissioner shall act as officer responsible for welfare
4. The Women Commissioner shall strengthen communication and cooperation between both genders.
5. Have mandatory National Service with the Union.
6. Hold office for a year and may seek re-election.
7. She shall perform any additional duties assigned to her by Congress, Central Committee, the NEC, and/or the National President, provided it is consistent with the provisions of this Constitution.

55. EXTERNAL BOARD REPRESENTATIVE(S)

1. The Union shall be represented on External Boards by elected representative(s) at Congress.
2. Be present at all Central Committee Sitzings and Congress in their tenure of office
3. Submit annual report to Congress
4. Submit quarterly report to National Secretariat and Central Committee.
5. Perform any other related duties assigned to him/her by National Executive

Committee or Central Committee of the Union.

56. QUALIFICATION FOR ELECTION AS GNUTS EXTERNAL REP

- (1). Must have served the Union in the capacity as a NEC member
- (2) Without prejudice to clause (1) supra, the applicant shall possess Two years after Union experience
- (3) Hold office for the tenure of the board unto which he or she was elected

57. GNUTS REPRESENTATIVE

1. The GNUPS Representative shall be the Ambassador of the Union at the SRC Level.
2. The Representative Shall Submit monthly institutional reports to the Union and bi-monthly reports to CC on behalf of the SRC.
3. Ensure together with the SRC President that, all funds due the Union are paid.
4. Perform any other duties assigned to him/her by the Union or SRC.

58. SRC WOMEN'S COMMISSIONERS

- (1) There shall be a Women's Commissioner who shall be an executive of the SRC in all Member Institutions.
- (2) The Women's Commissioner shall champion the interest of all Women on campus and shall be a member of the National Women's Commission.
- (3) Act in the absence of GNUPS Representative.
- (4) Perform any other function as the Union or SRC may require.

CHAPTER FIVE COMMITTEES

59. STANDING COMMISSIONS AND COMMITTEES OF GNUTS

(1) GNUTS shall have the following commissions/committees:

- (a) Electoral Commission/ Vetting Committee
- (b) Gender Commission
- (c) Finance Committee

60. ELECTORAL COMMISSION

- (1) The Electoral Commission shall be responsible for the conduct of all GNUTS elections and shall formulate their own modus operandi which shall not be in contravention with any provision(s) of this constitution for the conduct of elections.
- (2) The Electoral Commission, in the case of a vacancy in the National Secretariat, shall have 21 days within which to organize a bye-election to fill the said vacancy (ies).
- (3) The Electoral Commission shall educate members of the Union the electoral process.
- (4) The Electoral Commission shall be responsible for the provision of a platform for all members to interact with candidates in GNUTS elections
- (5) A Member of the Electoral Commission shall cease to be a member when:
 - (a) Proven to have an infirmity of mind or body.
 - (b) Prima facie case established against him/ her.
 - (c) he/she incapacitated
- (6) Notwithstanding clause (5) under this article, a member shall cease to be a member of the Commission through a written notice of resignation, which shall be addressed to the President of the Union. The Electoral Commission shall prepare and submit to the Judicial Council an independent report of the elections after the performance of their duties.

61. COMPOSITION OF THE ELECTORAL COMMISSION

1. The Electoral Commission shall be composing of five (5) members who shall comprise of two (2) Central Committee Members and two (2) Alumni or Associate Members and one National Secretariat member preferably the Coordinating Secretary
2. The President shall appoint the Electoral Commissioner from amongst members of the approved commission by the Central Committee in consultation with the National Executive Committee and Advisory Board subject to the approval of Central Committee
3. Subject to clauses (1) and (2) of this article, no member of the Commission shall be a member of any standing committee in this constitution.

62. INDEPENDENCE OF THE ELECTORAL COMMISSION

1. The Electoral Commission shall be an independent body and shall not be Subject to the direction and control of any person or authority.

63. DUTIES OF THE ELECTORAL COMMISSION

- (1) The Electoral Commission shall:
 - a. Be responsible for vetting all applicants during Congressional elections.
 - b. Be responsible for the conduct of all voting procedures at Congress
 - c. Upon an en-bloc resignation or impeachment of the National Secretariat Conduct fresh elections within six (6) weeks.
 - d. Make rules and regulations for the exercise and execution of its functions.
- (2) The President shall appoint the Electoral Commissioner from amongst members of the approved commission by the Central Committee in consultation with the National Executive Committee and Advisory Board subject to the approval of Central Committee
- (3) The Commission shall elect a Deputy Chairperson and Secretary at their first meeting.
- (4) No member of the Electoral Commission shall serve as a Chairperson for more than one academic year unless otherwise decided by Congress.

64. WOMEN'S COMMISSION

1. The Women Commission shall comprise of all women commissioners of member Institutions
2. The Women Commissioner shall be the Chairperson of the Women Commission including two (2) other females and two (2) males.
3. A member of the Women Commission shall cease to be a member through resignation, proven infirmity of mind or body, death or when a prima facie case has been established against him/ her.
4. No member of the Union shall be appointed as member of the Commission unless he/she has appreciable understanding of Gender issues.
5. The Women Commission shall be responsible for Gender related issues such as the integration and participation of female students in GNUT'S activities.
6. The Women Commission shall advocate gender issues, promote higher female education at the national and international level.
7. The Committee may liaise with the Ministry for Gender Affairs to help in addressing the challenges of female students in the country.

65. FINANCE COMMITTEE

- (1) There shall be a Finance Committee, which shall comprise of:
 - (a) the National Treasurer who shall be the Chairperson
 - (b) All SRC Treasurers of Member Institutions.

66. EXPENDITURE

- (1) The expenditure of GNUTS shall include the following:
 - (a) Administrative expenses
 - (b) T&T, honorarium and/or per diem of officers who work for and on behalf of GNUTS
 - (c) Cost of Projects duly approved by National Secretariat, Central Committee and or Congress

(d) Organization of Central Committee, Congress and National Secretariat meetings.

(e) Other expenses incurred on Member(s) welfare.

(2) Any other expenditure not stated in this constitution and / approved by Central Committee and / Congress amounts to mismanagement and shall not be recognized by this Constitution.

(3) Any mismanagement of funds constitutes misconduct under this constitution

67. MANAGEMENT OF ACCOUNT

1. GNUTS shall maintain a Current and Saving Accounts with a Bank (s) that is networked nationally for the purpose of the Unions' financial transactions.
2. Eighty percent (80%) and twenty percent (20%) of all monies collected on behalf of GNUTS by Member Institutions shall be paid into the Current and Savings Accounts respectively within 24 upon receipt of the said monies.
3. All monies saved in the GNUTS Savings Account shall only be withdrawn with the approval of Central Committee.
4. All monies received by any officer on behalf of GNUTS shall be lodged with the Treasurer before lodging it into the GNUTS Current Account before disbursement.

68. ADHOC-COMMITTEE

1. Congress, Central Committee and NEC shall have the power to form ad-hoc committee(s) as and when necessary

CHAPTER SIX

ELECTION

69. GENERAL QUALIFICATION FOR NATIONAL PRESIDENT AND SECRETARY ELECTIONS

- (1) Only students of Member Institutions shall hold office in the Union.
- (2) The Position of National President and National Secretary shall be rotated among member institutions in the order set out in the Fifth Schedule of this constitution.
- (3) The election of National President and National Secretary shall be conducted at Congress
- (4) The student should have completed three academic semesters in his /her institution in the case of HND students and five academic semesters in the case of Degree students.
- (5) Without prejudice to (2) supra, a top-up student must have completed his or her first year of study
- (6) The student should be reading a full time tertiary program in the Technical University.
- (7) The student should not be in the final year at the time of the Election.
- (8) Any student holding any executive position shall resign two (2) months prior to contesting any National Position.
- (9) Without prejudice to clause (1) supra, applicant shall certify a CGPA criteria of not less than 3.5
- (10) Any student, wishing to contest for any position at the National Secretariat shall not be an executive or an active member of any Political Party.

70. GENERAL QUALIFICATION FOR PERMANENT SECRETARIAT ELECTIONS

- (1) Any member of GNUTS shall be eligible to contest election only when he/she has been nominated by SIX (6) local GNUTS Executives of which one (1) from each Member Institution.
- (2) No member shall be nominated to contest for any position in absentia

- (3) Notwithstanding clause (1) supra, a person shall not qualify to contest for any position under this constitution if:
- (a) He/she has ever been voted out of any office for stated misconduct.
 - (b) Any adverse findings against him/her by any committee of inquiry.
 - (c) He/she has misappropriated funds or misconducted him/herself in any other manner as to have caused loss of money or property entrusted him/her.
 - (d) Vetting Committee finds him/her not qualified for such position contesting/vying for based on his/her unsatisfactory performance at the Vetting Committee.
- (4) The candidates SHALL satisfy a CGPA criteria required by his or her institution. The eligibility of a member of GNUTS to contest for election may be challenged by any member of GNUTS who may present a petition to that effect to the Vetting Committee within seventy-two (72) hours of the person being advertised as a nominee for elections.
- (5) There shall be no right to proxy voting in the case of accredited delegate being indisposed.
- (6) Notwithstanding any provision in this constitution, the position of the Women Commissioner shall be reserved for female Members of the Union.
- (7) The person must be a prospective Mandatory National Service Personnel

71. GENERAL QUALIFICATION FOR ELECTION OF COORDINATING SECRETARY

- 1) Should have completed his/her course in a Polytechnic/Technical University.
- 2) Should have been an outgoing GNUTS National Executive Committee member.
- 3) Notwithstanding Clause (2) members of Central Committee shall not be denied the legitimacy to contest the position of the CS where NO outgoing GNUTS National Executive Committee member files his/her nomination.
- 4) Should have participated in at least one (1) Residential Congress and three (3) Central Committee meetings.
- 5) Shall be eligible to contest within the first two years after completion of his/her tertiary program.

- 6) Notwithstanding clause (2) of this article, an out-going Coordinating Secretary shall not be eligible to seek re-election.

72. CONDUCT OF ELECTIONS

1. Student who may stand for any positions shall apply to the Electoral Commission upon declaration of the vacant position(s).
2. Within Three weeks commencing the date of appointment, the Electoral Commission shall issue notice inviting nomination form interested qualified candidates through the SRC's.
3. The SRC shall advertise the vacant position(s) via their notice Boards and/or by electronic advertisement for filing of nomination(s).
4. Within 7 days after the close of nomination, the EC shall commence a series of screening and vetting exercise during which all candidates shall submit themselves for vetting and clearance.
5. A person shall not be a candidate for elections unless he has fulfilled the following:
Purchase a nomination form, fill and endorsed by him.
 - (a) The nomination form must be signed by not less than SIX (6) students from Member Institutions.
 - (b) Deliver to Electoral Commission on or before the date for submission by him or his representative.
 - (c) Where at close of nomination, two or more candidates or group of candidates have been nominated, a candidate shall stand elected by simple majority.
 - (d) Where at the close of nomination only one candidate is nominated, there shall still be elections and that candidate shall pull not less than fifty percent (50% +1) plus one of valid votes cast to win the election.
- (6) The Electoral Commissioner shall immediately after the Elections declare provisional results and until such results are challenged declare final results four hours after

election.

- (7) In the event of a tie fresh election shall be held for the candidates involved unless there is a withdrawal.
- (8) Any candidate, who is not satisfied with the election results, shall have the right, to petition the Judicial Council within two hours (2hrs) after the declaration of the provisional results and the Committee shall have the power to take a decision on the petition and it shall be final.
- (9) Any candidate who engages in any electoral fraud or malpractices shall be disqualified from the elections as may be determined by the electoral commission.
- (10) In the event where a candidate(s) is found to have engaged in malpractice stand elected after the election he shall be disqualified and the person who won the second highest votes shall be declared the winner.
 - (a) Where irregularities are determined at a polling station during voting, results shall be cancelled and a new voting shall be conducted
- (11) The rules and regulations guiding the conduct of elections of the NEC shall be set by the Electoral Commission and shall be communicated to aspirants not less than one (1) week to Congress.
- (12) Immediately after the close of polls, the Presiding Officer(s) shall in the presence of candidates or their representative proceed to count at the polling station, the ballot papers and record the votes cast in favour of each candidate in question.
- (13) The results of the National Secretariat elections shall be presented to Congress within twenty-four (24) hours after declaration of results.
- (14) In the case of a tie for any position, there shall be run-off to decide on the winner for such position; unless there is/are withdrawal(s) such that only one candidate remains and he/she shall be declared winner.
- (15) Notwithstanding clause (9) only the candidates with the highest equal votes tied up shall be considered for a run-off and the rest withdrawn.
- (16) Voting shall be by secret ballot and the winner shall be declared based on simple majority.

- (17) In the event where there is only one candidate for a particular position such a person shall be required to obtain at least fifty percent plus one vote (50% + 1) of the valid vote cast.
- (18) The Electoral Commission shall re-open nomination in the event that an unopposed candidate is unable to fulfil clause (17) supra.
- (19) An unopposed candidate who is not able to fulfil clause (17) supra shall not be eligible to contest for the same position when nominations are re-opened.
- (20) In the event of disputes of the electoral results, the aggrieved contestant(s) may challenge the declaration with a written notice to the Judicial Council within three (2) hours after the provisional results have been declared.

CHAPTER SEVEN

REMOVAL AND RESIGNATION FROM OFFICE

73. GROUNDS FOR REMOVAL

- (1) An Executive Officer shall be removed from office if found in accordance with the provision of this constitution to;
- (a) have acted in violation of the Oath of Office set out in this Constitution
 - (b) Have conducted himself in a manner which brings or likely to bring his office or the Union into disrepute or ridicule, contempt or inimical to the Union.
 - (c) Be incapable of performing his functions by reason of infirmity.
 - (d) Have embezzled or misappropriated funds of the Union.
 - (e) Be inefficient or negligent in the discharge of his duties.
 - (f) Have absented himself from two (2) Central Committee and National Secretariat sitting s without permission and justifiable reasons.

74. IMPEACHMENT

1. All impeachment proceedings shall be in writing and shall be referred to the Judicial Committee, signed by 2/3 accredited members of Central Committee, Stating the reasons for the impeachment.
2. The written allegation referred to in clause (a) above shall be accompanied by a statement of the detailed facts and all necessary documents supporting the claim for the impeachment.
3. The Judicial Council upon receipt of the impeachment notice shall within two weeks convene a sitting to investigate if there are any genuine grounds for removal of the officer and the findings shall forthwith be submitted to Central Committee for ratification.
4. After the submission of the findings the Central Committee shall move a resolution of 2/3 majority of members present and voting, and the officer(s) ceases to hold office on the day Central Committee decide that he/she be

removed from office.

5. In event of the entire Executive Committee being removed from office or resigning from office or resigning en-bloc, an interim executive committee shall exercise the function of National Secretariat until fresh elections are conducted within six (6) weeks.
6. The interim executive committee shall comprise of one representative from the following;
 - (a) SRC Presidents
 - (b) GNUTS Representatives
 - (c) Treasurers
 - (d) Secretaries
 - (e) Women's Commissioners
 - (f) Advisory Board
 - (g) Alumni

75. RESIGNATIONS

1. Any Officer of the UNION who wishes to resign from post or membership at any time shall give a month's notice in writing to the Judicial Council and a copy to **NATIONAL EXECUTIVE COMMITTEE**.
2. Such an officer who resigns shall hand over all documents / properties belonging to the Secretariat in his possession a week before the effective date of his resignation.
3. In the case of a national officer, upon Central Committee acceptance of his/her resignation, the National Executive Committee shall cause such an officer to be audited and Central Committee convene within SIX (6) weeks to hold a bye election to replace the officer concerned.
4. The Electoral committee shall conduct the bye election

76. SANCTIONS

- (1) The Central Committee or Congress shall impose Sanctions on any member Institution that fails to fulfill its financial obligations without cogent reason.
- (2) Any Member Institution or Central Committee member whose conduct shall

bring the name of the Union into disrepute by way of insubordination, disrespect, etc. shall be liable to sanction by Central Committee or Congress.

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CHAPTER EIGHT FINANCE AND AUDITING

77. FINANCE

1. Every student of Member Institution shall pay a prescribed fee, which shall be determined by Congress as dues.
2. Alumni and Associates Members shall pay a prescribed fee, which shall be determined by the Alumni and Associates Association as dues to the Union.
3. The Union's dues payable shall be submitted to the Permanent Secretariat within the first eight (8) weeks of the academic year of Member Institutions.
4. The Union shall receive voluntary contributions from anybody provided that no conditions are expressed or implied which are contrary to GNUTS policy or the spirit of this Constitution.
5. The National Secretariat may decide to raise funds from any other sources subject to the qualification made above. All such monies shall be paid into the account of the Union.
6. All monies shall be paid into the Union's account.
7. The signatories to the Union's account shall be the President, Treasurer and Coordinating Secretary.
8. The President shall be the Principal signatory to the Union's account.
9. At any point in time, the Treasurer shall keep impress for the UNION determined by National Secretariat.
10. All Member Institutions shall retain 10% of the total dues payable to the Union.

78. GNUTS DEVELOPMENT FUND

1. There shall be a Fund established by the Union herein called the GNUTS Development Fund.
2. The Fund shall be used for major developmental projects for the Union.
3. The amount to be paid by each member of the Union shall be determined by Congress.
4. An investment account shall be opened for the Development Fund into which all

monies in the name of the Fund shall be paid into.

5. The National Treasurer shall lodge all monies of the Fund into the Investment account within seventy two hours upon receipt.
6. The Fund shall be managed by a Board of Trustees to be appointed at Congress.
7. The Board of Trustees shall comprise of the following:
 - (a) The President
 - (b) The Coordinating Secretary
 - (c) The Treasurer
 - (d) A Representative from Central Committee
 - (e) A Representative from the Alumni Association
 - (f) A Representative from CORP
 - (g) The qualified Alumni shall be one with Fund Management background without prejudice to clause (6) supra.

79. AUDITING

1. The Union's account shall be audited by external Auditors.
2. The external auditors shall have access to all books of accounts, records, returns and other relevant document of the Union.
3. The audited report shall be presented to the last Central Committee sitting at congress.
4. Congress expenditure shall be audited at least one calendar month after congress
5. Copies of the audited report shall be sent to the various SRC's of member Institution
6. Where an audited report prove beyond reasonable doubt that, a person or group of persons is or are involved in fraud or embezzlement of the Union's funds or is in illegal possession of the Union's property or important documents, the person(s) by this constitutional declaration shall be arrested and prosecuted under the criminal laws of Ghana.

CHAPTER NINE

80. PROVISION OF FACILITIES AND HONORARIUM

1. The Finance Committee shall determine honoraria for National Secretariat subject to approval by CC. This shall include monthly allowance, per diem, end of service benefit etc, subject to the approval of Central Committee.

81. INDEMNITY

1. Workers and Officers of the Union shall be indemnified out of the Assets and Funds of the Union against any legal or other liabilities as may be incurred in a legitimate and legal execution of their duties as assigned to them under this Constitution or on behalf of the Union.

CHAPTER TEN
AMENDMENT(S) REVIEW OF THE CONSTITUTION

82. AMENDMENT AND REVIEW OF THE CONSTITUTION

1. No provision of this Constitution shall be amended unless a written proposal for such amendment(s) is being addressed to the Judicial Council.
2. Such proposal shall be considered by the Judicial Council and submitted to the Central Committee and the Students Body with the findings and recommendations it shall make; Two (2) clear week before Congress.
3. Congress shall upon receipt of the proposal(s), debate and adopt it by a resolution of not less than (2/3) majority of members present.
4. No amendment shall be deemed to have been made unless the above process has been followed.
5. A proposal to review this Constitution shall go through the procedure for amendment in Central Committee in accordance with clause one (1) of this article.
6. Where the proposal has been passed in Central Committee accordance with this article, the President shall ascent to it within fourteen (14) days.

83. POWER TO MAKE BYE LAWS

- a. Central Committee and Congress shall within the scope of its authority under this Constitution make bye laws relating to matters under their control and power
- b. All such bye laws shall be in writing subject to the advice of the Judicial Council, and shall come into force when signed by the President of the Union within fourteen (14) days after it has been passed

CHAPTER ELEVEN

ADMINISTRATION

84. OFFICE SPACE

1. The Union shall provide a Permanent Office Space for the National Executive Committee officers called the Secretariat.

85. WORKING DOCUMENT

1. All Official documents of the Union shall be kept under the strict care of the Coordinating Secretary at the Secretariat.
2. In view of clause (1) above, it is hereby declared that the Union shall operate strictly a Central filing system.

86. INTERNAL COMMUNICATION

1. Communication within executive and committees shall be through the Union's Memo Sheet.
2. All memos requesting for money, must be addressed to The President through the Coordinating Secretary.

87. EXTERNAL COMMUNICATION

1. All letters going out of GNUTS Secretariat must be on the GNUTS Letter Head and appropriate copies filed.
2. All these correspondence must be signed by the President or for him by the Coordinating Secretary.
3. All incoming mails must be handled by the Coordinating Secretary and forwarded to the concerned Officer(s)

88. MINUTES OF CENTRAL COMMITTEE SITTING

1. The minutes of Central Committee sittings shall follow such high standard of votes and proceedings in the National Parliament of the Republic.

FIRST SCHEDULE
CONVERSION CLAUSE

1. The name GNUTS is a transition from GNUPS due to the conversion of Polytechnics into technical universities by the Act of Parliament
2. NEC is therefore duty bound to swear an affidavit one month after coming into force of this constitution to ensure the change of name
3. NEC shall within one month of the coming into force of this constitution carry out the necessary amendments at the Registrar General Department with regards to the name of the Union and all associated rights and responsibilities therein.
4. All the rights of GNUPS recognised under the laws of Ghana shall be fully enjoyed by GNUTS
5. All existing polytechnics that may not be converted after coming into force of this constitution, shall remain members of GNUTS with full rights pending their progressive conversion into technical universities

SECOND SCHEDULE
TENURE OF OFFICE

1. All officers of the National Secretariat shall hold office for one academic year only, in consonance with this constitution
2. Any officer of the National Secretariat may be suspended, or removed from office on account of:
 - (a) Mismanagement of funds,
 - (b) Infirmary of body or mind,
 - (c) Gross misconduct,
 - (d) Negligence of duty,
 - (e) Any act that is likely to bring GNUTS into disrepute and/or,
 - (f) Adverse finding him/her by an appointed committee of GNUTS.
3. An officer of the National Secretariat may be removed from office only by quorum stated in this constitution supra.

4. A member may subject to clause (2) of this article, initiate an impeachment proceeding against any officer by writing to the Judicial Council, stating very clearly the reason(s) for the impeachment and providing all the necessary evidence for the allegation(s), and the Judicial Council shall take all the necessary steps to address the issue to its logical conclusion and make recommendation to NEC and Central Committee.
5. (5) Central Committee or Congress may base on suspicion and/recommendation(s) by the Judicial Council interdict any officer of the NEC, until such that the officer concern has been conclusively investigated by Central Committee or Congress.
6. Where credible evidence is found against the person, he/she shall be punished in accordance with article 30(2) but where there is a favorable finding, he/she shall be re-instated.
7. Where an officer is not satisfied with the verdict of Central Committee, may appeal to Congress through the Judicial Council Chairperson for a review of the verdict and Congress shall consider the merit of the application in taking any decision and the decision so taken shall be final.
8. An officer of the NEC other than the National President may relinquish his/her post voluntarily by writing to the National President at least two (2) weeks prior to the proposed date of resignation.
9. The National President may relinquish his/her post voluntarily by writing to the National Secretary at least two (2) weeks prior to the proposed date of resignation.
10. If there is an en bloc resignation or resignation by the National President and Secretary, they shall relinquish the post by writing to the Chairperson of Judicial Council.

11. On receipt of any proposed resignation letter from any officer, the National President, National Secretary or Chairperson of Judicial Council as the case may be, shall communicate to the NEC and or Central Committee about such resignation within seven (7) days.
12. An officer who resigns his/her position or who otherwise leaves office shall hand over all properties of GNUTS in his/her possession to the NEC and clear him/herself in respect of any other obligations he/she may owe to GNUTS within two (2) weeks.
13. Any vacancy created in respect of any officer by whatever cause shall be filled within twenty-one (21) days through a bye-election.

TRANSITION

1. Transition period shall be before, during and after handing over ceremony. The transitional period shall span three weeks after congress however; the Outgoing National Secretariat shall be responsible to give the needed orientation to the incoming National Secretariat within the last week of the transitional period.
2. Change of signatories to incoming executives shall be done at least three days before handing over.
3. The outgoing Coordinating Secretary and Chief Justice shall take incoming National Executive Committee members round to see all movable and immovable assets of the Union, within the transitional period.
4. Executive Officers shall vacate the Unions' residence one month after Congress.
5. Without prejudice to any provision in this Constitution, the National Secretariat shall, within three weeks after congress take stock of all the assets of the Union and shall report to the first Central Committee sitting.
6. It is hereby declared that all outgoing officers' documents are property of the Union and shall be handed over to incoming officers. An outgoing officer who shall be proven beyond every reasonable doubt to have sneaked out some important transitional documents shall by this declaration violate his oath of office and shall be prosecuted in Central Committee accordance with the provisions of this Constitution and the laws of Ghana.

HANDING OVER

- (1) The incoming Central Committee Members in collaboration with the outgoing National Secretariat shall hand over to the incoming Central Committee Members at Congress.
- (2) The Outgoing National Secretariat shall arrange and organize the handing over ceremony in collaboration with the incoming National Secretariat.
- (3) The Handing over shall be done in the presence of the entire Members of Congress

STANDING ORDERS FOR VOTING

1. Voting shall be by delegates only. Each Central Committee accredited delegate shall be entitled to one vote only.
2. Voting privileges shall include the right to delegate, move a motion or second motions or nominations.
3. In voting motions shall be carried by a simple majority of delegates present and voting unless otherwise stated by the Constitution or Standing Orders.
4. The casting of vote shall be in the following order:
5. Vote For
6. Against,
7. Abstentions.
8. If the numbers of votes for and against a motion are equal, the Chairman shall exercise the casting vote. Delegates abstaining shall be considered as non-voting. Legislation of commissions shall be ratified by a Plenary Session.

ALLOCATION OF WORKING PAPERS

- (1) All delegates, accredited observers and invited guests shall participate in all deliberations of the plenary sessions and the working committees
- (2) At the beginning of the working session, each committee shall have the right to adopt the working papers before, and begin to work on them. However, a motion can introduce any relevant item on the agenda for discussion.
- (3) Each committee may assign an item on the agenda to a sub-committee if it deems fit.
- (4) Legislation of committees shall be ratified by the plenary session

MOTIONS

1. All delegates have the right to file and second Motions however; two Central Committee accredited observers can second the Motion.
2. All Central Committee accredited observers can file Motions only when such Motions are seconded by a delegate or three Central Committee accredited observers.
3. All Motions shall be submitted in writing to the Chairman and shall be heard at all times.
4. No Motion shall be opened for discussion until it has been seconded, however the Mover shall have the right to speak on the motion for two minutes in order to find a Secunder(s).
5. No matter shall be discussed until it concerns an approved subject on the Agenda, except otherwise decided by the House
6. A Motion shall only be opened for discussion after a proposer and a Secunder (s) have been given the opportunity to speak in support of the Motion.
7. After the mover and Secunder(s) have spoken for the Motion, the Chairman shall invite other speakers in the following order:
 - (a) For the Motion
 - (b) Against the Motion.
8. The mover of the Motion shall have the right of reply at close of the debate. No

further discussions on the Motion shall be allowed.

9. No motion Central Committee accepted by the Chair, shall be withdrawn without the consent of the House, neither shall any addendum be made to a motion once Central Committee accepted except by a procedural motion.
10. Discussion of a motion (including amendments) may be curtailed in time by procedural motion from the floor or by the Chair, with the approval of the House.
11. The Chairman shall limit debate on all such motions provided the mover and one speaker for and against the motion shall in all cases have the right to speak.

ORDER OF PRECEDENCE

(1) The Chairman shall allow the following Procedural Motion(s) to be put when there is already a proposition on the table, in the following order:

- (a) That the Motion be now put.
 - (b) That the Motion not now be put
 - (c) A motion to postpone or adjourn the matter to a later specified sitting
 - (d) Next business
 - (e) A motion to refer the matter to a Committee or subcommittee for investigation and for a report
 - (f) A Motion to limit a debate to a specified period.
 - (g) That a matter be laid on the table.
 - (h) A Motion to adjourn the sitting to a later date.
 - (i) Motions provided for by the clauses i, ii, vi, and vii shall receive a two thirds majority of votes cast i.e. excluding abstentions.
- (2) If a Motion now put has been seconded, no further discussion of the original question shall be allowed but a member who may give notice of his proposer of the original question under discussion shall be allowed to speak before the original question is put to vote.
- (3) If the Motion to limit a debate to a specified period is carried, the Chairman shall draw up a list of those wishing to make their first speech on the subject and allow

each one an equal proportion of the specified period. The proposer shall be allowed a maximum of five minutes to sum up before the original motion is put to vote

ALLOCATION OF WORKING PAPERS/TERMS OF REFERENCE

- (1) All delegates, accredited observers and invited guests shall participate in all deliberations of the plenary sessions and the working committees
- (2) At the beginning of the working session, each committee shall have the right to adopt the working papers before, and begin to work on them. However, a motion can introduce any relevant item on the agenda for discussion.
- (3) Each committee may assign an item on the agenda to a sub-committee if it deems fit.
- (4) Legislation of committees shall be ratified by the plenary session

CONDUCT OF MEETINGS

- (1) A member shall direct his or her speech strictly to the motion or amendment under discussion.
- (2) If no definite motion or amendment before the meeting, the member shall direct his speech strictly to the point of the Agenda under discussion. Every member shall address the house and the Right Honourable Speaker appropriately before speaking.
- (3) No member shall be allowed to speak more than once on a subject as long as a member who has not spoken on that subject desires the floor. No member shall speak more than ten (10) minutes at one time without permission of the Speaker.
- (4) The Speaker shall interpret the standing orders, subject to the approval of the House. He shall be free to take part in all decisions.
- (5) Any or more standing Order(s) may, in case of urgency, or after notice duly given, be suspended or changed at any meeting so far as regards business at the particular meeting provided that there is a two-third (2/3) majority in favour.

- (6) If the motion "That the motion be now put" has been seconded, no further discussion of the original question shall be allowed, but a member may give notice of his/her desire to speak further on the original question. If the motion is carried, only the proposer of the original question under discussion shall be allowed to speak before the original question is put to vote.
- (7) If the motion "Limit debate to a certain specific time period" is carried, the Speaker shall draw up a list of those wishing to take their first speech as the subject and allow each one an equal proportion of the specific period. The proposer shall be allowed a maximum of five (5) minutes to run up before the original motion is put to vote.

INTERVENTIONS

- (1) In addition to a motion, the Chairman shall allow the following points in order of precedence.
 - (a) Point of Order
 - (b) Point of Correction
 - (c) Point of Information.
- (2) A point of Order must be heard at all times, and the Chairman shall give his ruling before the issue, if further discussed. Points of Order shall deal with the conduct of procedure of the debate. The member rising to put the point of order shall prove one or more of the following.
 - (a) That the Speaker is traveling outside the scope of the Motion under discussion.
 - (b) That he is using improper language.
 - (c) That he is infringing upon the Constitution or Standing Orders.
- (3) A point of Correction shall be factual presentation seeking to correct a statement made by the last speaker. It must be strictly related to the subject under immediate discussions.
- (4) A pint of Information is a question or a brief statement of a relevant fact concerning the matter under discussion. It may be directed to either the last speaker or the Chairman.

CONDUCT OF SITTING

1. A speaker shall direct his speech strictly to the Motion or Amendment under discussion. If no definite motion or amendment is before the House, the Speaker shall direct his speech strictly to the point on the Agenda under discussion. Every member shall address himself solely to Chair.
2. No member shall be allowed to speak more than once on a motion as long as a member who has not spoken on that motion desires the floor. No member shall speak for longer than ten 10 minutes at one time without permission of the Chair
3. The Chairman shall interpret the standing orders, subject to the approval of the house. He shall have the sole prerogative to moderate sitting s.
4. Any or more standing orders may , in case of urgency, or after notice duly given , be suspended at any sitting , so far as it regards business at the particular sitting provided that there is a two -thirds (2/3) majority in favor.

INVITATION TO PROGRAMMES AND DELEGATE

1. The National Secretariat in consultation with the Central Committee shall elect delegates / participants to any conference, seminars or projects. In making such elections, the National Secretariat shall consider as much as practicable with special emphasis on arithmetical distribution of such invitations, the expert knowledge on the subject matter to be discussed.
2. In an emergency situation, National Secretariat shall elect delegates / participants to such conference, seminars etc and shall report to Central Committee members.
3. When the National or Permanent Secretariat receives invitation to functions, the National Secretariat shall make the National Secretariat necessary arithmetical distribution of such invitations to the SRCs who shall proceed to elect such delegates / participants as they deem appropriate.
4. Delegates / Participants shall present a written report to National Secretariat within two weeks of their return from conferences, seminars or projects. National Secretariat shall send copies to Member Institution.

5. In event of the Union being represented on any Board, prospective candidates shall be vetted by the Electoral Commission of the Union and to be voted at Congress.

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THIRD SCHEDULE

OATHS

OATH OF ALLEGIANCE

I do (in the name of the Almighty God swear) (solemnly affirm) that I will bear true faith and allegiance to the Ghana National Union of Technical Students as by this Law established; that I will uphold the Objects and integrity of GNUTS; and that I will preserve, protect and defend the Constitution of the Ghana National Union of Technical Students. (So help me God).

THE PRESIDENTIAL OATH

I having been elected to the high office of President of the Ghana National Union of Technical Students do (in the name of the Almighty God swear) (solemnly affirm) that I will be faithful and true to GNUTS; that I will at all times preserve, protect and defend the Constitution of GNUTS; that I dedicate myself to the service and well-being of the Members of GNUTS and to do right to all Students.

I further (solemnly swear) (solemnly affirm) that should I at any time break this oath of office, I shall submit myself to the laws of the GNUTS and suffer the penalty for it (So help me God).

EXECUTIVE OATH

I having been elected a member of the National Executive Committee do (in the name of the

Almighty God swear) that I will not directly or indirectly reveal such matters as shall be debated in the Executive sitting and committed to my secrecy; and that I will uphold, preserve, protect and defend the constitution of the Ghana National Union of Technical Students. (So help me God).

JUDICIAL OATH

I having been appointed (Chief Justice / Justice of the JUDICIAL COUNCIL) do(in the name of the almighty God swear) (solemnly affirm) that I will bear true faith and allegiance to the Ghana National Union of Technical Students as by Law established; that I will uphold the Objects and integrity of GNUTS ; and that I will truly and faithfully perform the functions of my office without fear or favor , affection or ill will and that I will at all times uphold ,preserve ,protect and defend the Constitution of Ghana National Union of Technical Students .(So help me God).

OATH OF A MEMBER OF CENTRAL COMMITTEE

Ihaving been elected a member of the Central Committee do (in the name of the Almighty God swear) (solemnly affirm) that I will bear true faith and allegiance to the Ghana National Union of Technical Students as by Law established; that I will uphold, preserve, protect and defend the Constitution of GNUTS, and that I will faithfully and conscientiously discharge the duties of member of Central Committee. (So help me God).

FOURTH SCHEDULE

MEMEBERSHIP OF THE UNION

- (1) Without prejudice to the provisions of this Constitution the Institutional membership of the Union shall be;

- a. Accra Technical University
- b. Bolgatanga Technical University
- c. Cape Coast Technical University
- d. Ho Technical University
- e. Koforidua Technical University
- f. Kumasi Technical University
- g. Sunyani Technical University
- h. Tamale Technical University
- i. Takoradi Technical University
- j. Wa Technical University

FIFTH SCHEDULE

CONGRESS SHALL BE HELD IN ROTATION AMONG MEMBER INSTITUTIONS IN
THE FOLLOWING ORDER:

- a. Accra Technical University
- b. Tamale Technical University
- c. Kumasi Technical University
- d. Cape Coast Technical University
- e. Sunyani Technical University
- f. Koforidua Technical University
- g. Bolgatanga Technical University
- h. Wa Technical University
- i. Takoradi Technical University
- j. Ho Technical University